Form C1 – Declaration Form (General Insurance Agent)

Important note:

- The form must be completed by the individual / corporate / trade specific agent.
- For corporate agents and trade specific agents, the form must be reviewed and signed by the owner, director or authorised senior personnel. Please note that sections 2. Financial Soundness and 3. Honesty, Integrity & Reputation are also applicable to the controllers, sole-proprietors, managers of limited partnerships and limited liability partnerships, partners, directors, and office bearers.
- Corporate agents and trade specific agents must list their controllers, sole-proprietors, managers of limited partnerships and limited liability partnerships, partners, directors, and office bearers as applicable; and illustrate their shareholding and corporate structures using a chart if necessary, at ANNEX 1.
- Please answer all questions. Tick "NA" only if the question is meant for an individual agent and you are a corporate or trade specific agent, and vice versa.
- Please submit the completed form to your **Primary Principal**. Do not send this form to General Insurance Association of Singapore (GIA).
- The GIA will not be responsible for any misuse of the information by the parties concerned.

Section A - About Yourself / Your Company

1) Type of Agent applied for: ☐ **Individual Agent** ☐ **Corporate Agent**

☐ **Trade Specific Agent**: ☐ Foreign Domestic Worker ☐ Foreign Worker ☐ Travel

☐ Freight Forwarder ☐ Electrical Protection ☐ Motor

2) Primary Principal : _____

Secondary Principal 1 : _____

Secondary Principal 2 : _____

3) Name of Applicant/Agent: _____

4) NRIC/Passport/FIN/BRN: _____ GIAS Agent No.: _____

5) Address: _____ (S) _____

6) Email: _____ Contact: _____

Section B - Declaration

(*) Please delete as appropriate

1. Representation of Members of GIA	Yes	No	NA
Have you: a) entered into an agency agreement or agreements over the last 12 months with any Member of GIA other than the ones that you have indicated in Section A-2 above?	☐	☐	
b) ever been terminated by any Member of GIA?	☐	☐	
c) been transacting general insurance business with any Member of GIA other than the ones you represent?	☐	☐	
For **corporate agent / trade specific agent:** d) entered into a Tripartite Agreement with any of the Member of GIA and any agent registered with the ARB?	☐	☐	☐

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1. Representation of Members of GIA
If you tick "Yes" to any of the above, please provide details below:

2. Financial Soundness	Yes	No	NA
• Individual agents are to complete 2(a) to 2(f), and provide details below if your answer is "Yes" to any of the questions. • Corporate agents and trade specific agents are to complete 2(a) to 2(c), 2(e), and 2(f), and provide details below if your answer is "Yes" to any of the questions. • For corporate agents and trade specific agents, this section is also applicable to your controllers, sole-proprietors, managers of limited partnerships and limited liability partnerships, partners, directors, and office bearers.			
Within the past 10 years, have you: a) Have you been or are you unable to fulfill any of your financial obligations, whether in Singapore or elsewhere?	☐	☐	☐
b) Have you entered into a compromise or a scheme of arrangement with creditors, or made an assignment for the benefit of your creditors, being a compromise, scheme of arrangement or assignment that is still in operation, whether in Singapore or elsewhere?	☐	☐	☐
c) Have you been or are you subject to any judgment debt against you which you have been unable to satisfy within 7 days from the date of the judgment, whether in Singapore or elsewhere?	☐	☐	☐
For **individual agent**: d) Are you an undischarged bankrupt or a person in respect of whom a bankruptcy proceeding is pending in Court, whether in Singapore or elsewhere?	☐	☐	☐
For **corporate agent / trade specific agent:** e) Is your company the subject of a winding up petition, or in the course of being wound-up or otherwise dissolved, whether in Singapore or elsewhere?	☐	☐	☐
f) Has a receiver, receiver and manager, judicial manager, or such other person having the powers and duties of a receiver, receiver and manager, or judicial manager, been appointed in relation to, or in respect of, any property of your company, whether in Singapore or elsewhere?	☐	☐	☐
If you tick "Yes" to any of the above, please provide details below:			

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3. Honesty, Integrity & Reputation	Yes	No
• Individual agents are to complete 3(a) to 3(v), and provide details below if your answer is "Yes" to any of the questions. • Corporate agents and trade specific agents are to complete 3(a) to 3(o), and provide details below if your answer is "Yes" to any of the questions. • For corporate agents and trade specific agents, this section is also applicable to your controllers, sole-proprietors, managers of limited partnerships and limited liability partnerships, partners, directors, and office bearers.		
Within the past 10 years, have you: a) carried on business in any jurisdiction under any name other than the name stated in this application?	☐	☐
b) been refused the right or restricted in your right to carry on any trade, business or profession for which a specific license, registration or other authorisation is required by law in any jurisdiction?	☐	☐
c) been issued a prohibition order under any Act administered by the Monetary Authority of Singapore or been prohibited from operating in any jurisdiction by any financial services regulatory authority?	☐	☐
d) been censured, disciplined, suspended or refused membership or registration by the Monetary Authority of Singapore, any other regulatory authority, an operator of a market or clearing facility, any professional body or government agency, whether in Singapore or elsewhere?	☐	☐
e) been the subject of any investigations or disciplinary proceedings or been issued a warning or reprimand by the Monetary Authority of Singapore, any other regulatory authority, an operator of a market or clearing facility, any professional body or government agency, whether in Singapore or elsewhere?	☐	☐
f) been the subject of any proceedings of a disciplinary or criminal nature or been notified of any potential proceedings or of any investigation which may lead to those proceedings, under any law in any jurisdiction?	☐	☐
g) been convicted of any offence, served any term of imprisonment or is being subject to any pending proceedings which may lead to a conviction of any offence, under any law in any jurisdiction?	☐	☐
h) had any judgment (including the finding of fraud, misrepresentation or dishonesty) given against you in any civil proceedings in Singapore or elsewhere, or been a party to any pending proceedings that may lead to such a judgment?	☐	☐
i) accepted civil liability for fraud or misrepresentation under any law in any jurisdiction?	☐	☐
j) had any civil penalty enforcement action taken against you by the Monetary Authority of Singapore or any other regulatory authority under any law in any jurisdiction?	☐	☐
k) contravened or abetted another person in breach of any laws or regulations, business rules or codes of conduct, whether in Singapore or elsewhere?	☐	☐

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l) been the subject of any complaint made reasonably and in good faith, relating to activities that are regulated by the Monetary Authority of Singapore or under any law in any jurisdiction?		☐	☐
m) been refused a fidelity or surety bond, whether in Singapore or elsewhere?		☐	☐
n) demonstrated an unwillingness to comply with any regulatory requirement or to uphold any professional and ethical standards, whether in Singapore or elsewhere?		☐	☐
o) been untruthful or provided false or misleading information to Monetary Authority of Singapore or been uncooperative in any dealings with Monetary Authority of Singapore or any other regulatory authority in any jurisdiction?		☐	☐
For **individual agent**: p) been or are you a director, partner, substantial shareholder or concerned in the management of a business that has been censured, disciplined, prosecuted or convicted of a criminal offence, or been the subject of any disciplinary or criminal investigation or proceeding, in Singapore or elsewhere, in relation to any matter that took place while you were a director, partner, substantial shareholder or concerned in the management of the business?	NA ☐	Yes ☐	No ☐
q) been or are you a director, partner, substantial shareholder or concerned in the management of a business that has been suspended or refused membership or registration by the Monetary Authority of Singapore, any other regulatory authority, an operator of a market or clearing facility, any professional body or government agency, whether in Singapore or elsewhere?	☐	☐	☐
r) been a director, partner, substantial shareholder or concerned in the management of a business that has gone into insolvency, liquidation or administration during the period when, or within a period of one year after, you were a director, partner, substantial shareholder or concerned in the management of the business, whether in Singapore or elsewhere?	☐	☐	☐
s) been dismissed or asked to resign from office, employment, a position of trust, or a fiduciary appointment or similar position, whether in Singapore or elsewhere?	☐	☐	☐
t) been or are you subject to disciplinary proceedings by your current or former employer(s), whether in Singapore or elsewhere?	☐	☐	☐
u) been disqualified from acting as a director or disqualified from acting in any managerial capacity, whether in Singapore or elsewhere?	☐	☐	☐

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v) been an officer found liable for an offence committed by a body corporate as a result of the offence having proved to have been committed with the consent or connivance of, or neglect attributable to, the officer, whether in Singapore or elsewhere?	☐	☐	☐
If you tick "Yes" to any of the above, please provide details below:			

4. Compliance	NA	Yes	No
Are you at all times in compliance with the: a) General Insurance Agents' Registration Regulations?	☐	☐	☐
b) Code of Practice for Agents (including keeping of proper accounting records)?	☐	☐	☐
c) Personal Data Protection Act 2012 ("PDPA")?	☐	☐	☐
d) Have you implemented the best practices in the Data Loss Protection Guidelines for Insurance Agents?	☐	☐	☐
For **individual agent**: e) Are you a Singapore citizen or a Singapore Permanent Resident or a foreigner holding a valid Work Permit or Employment Pass issued by the Ministry of Manpower?	☐	☐	☐
f) Have you fulfilled the minimum number of hours of Continuous Professional Development (CPD) training and such other requirements as may be determined by GIA from time to time?	☐	☐	☐
For **corporate agent / trade specific agent**: g) Does your company maintain a minimum paid-up capital of at least S$ 25,000?	☐	☐	☐
h) Are your shareholders, partners, managers, employees or directors who act on your behalf or represent you in your business of general insurance agent are also registered with the Agents' Registration Board as Nominee Agents and that all the declarations stated herein are true and correct in respect of your Nominee Agents, mutatis mutandis?	☐	☐	☐
If you tick "No" to any of the above, please provide details below:			
i) Have you made any payments to or shared commissions with any persons for introducing or referring customers to you, during the current calendar year?		☐	☐

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4. Compliance	NA	Yes	No
j) Have you received any payments from or shared commissions with any persons for introducing or referring customers to them, during the current calendar year?		☐	☐
If you tick "Yes" to 4(i) and/or 4(j), please provide details below:			

5. Other interests	Yes	No
a) Are you involved in or do you have any interest in any other business or commercial enterprise?	☐	☐
b) Are you an employee or a director or any person engaged in or contracted for the operations of, or a shareholder of or a debenture holder in or have any interest in any company, firm or business enterprise which is in the business of a general insurer or insurance loss adjuster?	☐	☐
c) Do you have a shareholding interest in any company, firm or business enterprise which is formed for the purpose of transacting or is engaged in transacting insurance broking business?	☐	☐
d) Are you or are any of your directors, officers, partners, employees, representatives or agents or any person involved in your management and/or operation, involved in any capacity in the management and/or operation of any insurance broking business?	☐	☐
e) Are you or are any of your directors, employees, shareholders, debenture holders, proprietors or owners, an employee, a director, a shareholder, a debenture holder or a proprietor or owner of another Agent?	☐	☐
If you tick "Yes" to any of the above, please provide details below:		

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I/We further declare that:

- the information shown in this declaration form and any attached documents are correct and complete.
- I/we (*) shall notify my/our (*) Principal/s in writing whenever
  - there is any change in the name or address or particulars as registered in the Register, or
  - I/we (*) cease to represent any Principal, or
  - when a Nominee Agent ceases to be employed by the Agency.
- I/we (*) shall not enter into any agreement or arrangement whatsoever for the appointment or engagement of any sub-agent.
- I/we (*) shall immediately notify in writing the Agents' Registration Board of GIA and the Ordinary Members of GIA for whom I/we (*) represent as my/our (*) Principals in the event that any fact, event or matter arises or occurs after the making of this Declaration which renders any of the declarations contained herein untrue or incorrect.

Signature: _____

Name: _____ Dated the ____ day of _____ 20 _____

(Day) (Month) (Year)

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ANNEX 1

Corporate agents and trade specific agents are required list their controllers, sole-proprietors, managers of limited partnerships and limited liability partnerships, partners, directors, and office bearers as applicable; and illustrate their shareholding and corporate structures using a chart if necessary.